

		Plaintiff has alleged a romantic relationship between her superior and a new hire that resulted in favoritism severe and pervasive enough to result in retaliation against several other employees including Plaintiff when they complained about or did not cooperate with efforts to promote the new hire beyond her qualifications, which resulting in termination of those employees. Prior to her own termination, Plaintiff found the work environment created by these actions to be intimidating, oppressive, and abusive. The combination of sexual favoritism, retaliatory terminations, and Defendant's failure to act made the harassment and hostility severe and pervasive throughout the workplace. This conduct unreasonably interfered with Plaintiff's work performance and created a work environment that was intimidating, oppressive, and abusive within the meaning of Government Code §12940(j). [FAC, ¶ 35.] This is sufficient to allege a cause of action for sexual harassment. Accordingly, the motion to compel arbitration is denied.
9.	2026-1545921 King Shin Ship Management Co. vs. Beyond Loan 1 LLC	Defendants Beyond Loan 1, LLC and Beyond Liquidity, LLC's unopposed motion to compel arbitration and stay all proceedings is granted. The Federal Arbitration Act (FAA) provides that a "written provision in any . . . contract evidencing a transaction involving commerce to settle by arbitration a controversy thereafter arising out of such contract or transaction, or the refusal to perform the whole or any part thereof . . . shall be valid, irrevocable and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract." (9 U.S.C. § 2.) "The 'principal purpose' of the FAA is to 'ensur[e] that private arbitration agreements are enforced according to their terms.'" (<i>Lacayo v. Catalina Restaurant Group Inc.</i> (2019) 38 Cal.App.5th 244, 257, citing <i>AT&T Mobility LLC v. Concepcion</i> (2011) 563 U.S. 333, 344, 131 S.Ct. 1740.) "California law, like federal law, favors enforcement of valid arbitration agreements." (<i>Baxter v. Genworth North America Corp.</i> (2017) 16 Cal.App.5th 713, 721, citation omitted.) Arbitrations provisions are to be interpreted broadly and "should be upheld unless it can be said with assurance that an arbitration clause is not susceptible to an interpretation covering the asserted dispute." (<i>EFund Capital Partners v. Pless</i> (2007) 150 Cal.App.4th 1311, 1321, citations omitted.) "A party seeking to compel arbitration under CCP section 1281.2 must plead and prove (1) the existence of a written arbitration agreement and (2) that the other party has refused to arbitrate.

(Code Civ. Proc., § 1281.2.) The party “opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

Here, Defendants move for an order compelling arbitration of all causes of action against them in Plaintiff’s complaint and for a stay of all proceedings. Defendants contend that all six causes of action asserted against them are subject to arbitration pursuant to (identical) arbitration provisions in the debenture agreements at issue. Specifically, Debenture No. 1 and Debenture No. 2 each contain the following provision:

15. Arbitration. Except as otherwise agreed to in writing by the Maker and the Holder, any claim, dispute, or controversy of whatever nature arising out of or relating to this [Debenture], including, without limitation, any action or claim based on tort, contract, or statute (including any claims of breach), or concerning the interpretation, effect, termination, validity, performance and/or breach of any sections of this agreement (any “Claim”), shall be resolved by final and binding arbitration (“Arbitration”) before a single arbitrator (the “Arbitrator”) selected from and administered by JAMS Inc. (the “Administrator”) in accordance with its then existing arbitration rules or procedures regarding commercial or business disputes. The Arbitration shall be held in Orange County, California. BY AGREEING TO THIS BINDING ARBITRATION PROVISION, THE HOLDERS UNDERSTAND THAT, EXCEPT AS OTHERWISE AGREED TO IN WRITING BY THE MAKER, THEY ARE WAIVING CERTAIN RIGHTS AND PROTECTIONS WHICH MAY OTHERWISE BE AVAILABLE IF A CLAIM BETWEEN THE PARTIES WERE DETERMINED BY LITIGATION IN COURT, INCLUDING, WITHOUT LIMITATION, THE RIGHT TO A JURY TRIAL, CERTAIN RIGHTS OF APPEAL, AND A RIGHT TO INVOKE FORMAL RULES OF PROCEDURE AND EVIDENCE. (ROA 65 [Exhs. A, B at ¶ 15].)

Plaintiff King Shin Ship Management Co., Limited has not opposed the motion and does not dispute that it entered into the arbitration agreements, or that the agreements encompass all of its claims against Defendants. As such, the Court finds Defendants have met their burden of showing the existence of the arbitration agreements,

		while Plaintiff has not met its burden of showing a defense to enforcement. The motion to compel arbitration is granted. This action is stayed pending completion of the arbitration. (Code Civ. Proc., § 1281.4.) The Court sets an arbitration status conference for March 4, 2027 at 9AM in Department N18. Defendants shall give notice of the ruling and of the arbitration status conference.
10.	2025-1525455 Chatterfield vs. Yanez	The Court sustains Defendants Bettina Yanez, Peter Joseph Flanagan and Yanez & Associates Divorce and Family Law's Demurrer to Plaintiff Angela Chatterfield's Complaint with 20 days leave to amend. Plaintiff has 20 days leave to amend after receiving notice of this Order. Defendants' Motion to strike is mooted by the ruling on Demurrer. <u>Request for Judicial Notice</u> The request for judicial notice is granted. <u>Merits</u> Plaintiff alleges that Defendants represented her in an underling dissolution matter. (Compl., ¶10.) On July 21, 2025, Plaintiff signed a retainer agreement with Yanez & Associates. (Compl., ¶15., Ex. Exhibit K.) Plaintiff paid a retainer of \$25,000, which sum Plaintiff borrowed from her sister. (Compl., ¶16.) Plaintiff admits that Defendants refunded \$16,024 to Plaintiffs sister keeping \$8,976 for their services. (Compl., ¶130.) 1. <u>The Demurrer is sustained to the first and second causes of action for fraud.</u> In these two fraud claims, Plaintiff also alleges that Defendants lied to Plaintiff when asserting that: - A trial would be necessary to determine prenuptial agreement validity. - The burden of proof was on Plaintiff to prove the agreement invalid. - A \$25,000 retainer was reasonable and necessary for this work. - Extensive witness preparation and expert testimony would be required